



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2044 : abandonment; concealment of body; classification

BLISS FLOOR AMENDMENT

1. Exempts the mother of an unborn child from the abandonment or concealment of a dead body statute if the unborn child's gestational age is under twenty weeks at the time of disposition, transportation or other handling.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2044
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-2926, Arizona Revised Statutes, is amended to
3 read:

4 13-2926. Abandonment or concealment of a dead body:
5 classification

6 A. It is unlawful for a person to knowingly move a dead human body
7 or parts of a human body with the intent to abandon or conceal the dead
8 human body or parts.

9 B. This section does not apply to [EITHER OF THE FOLLOWING:

10 1.] The disposition, transportation or other handling of dead human
11 remains for any purpose authorized under title 32, chapter 12, title 32,
12 chapter 20, article 6 and title 36, chapters 3 and 7.

13 [2. THE MOTHER OF AN UNBORN CHILD IF THE GESTATIONAL AGE OF THE
14 UNBORN CHILD AT THE TIME OF THE DISPOSITION, TRANSPORTATION OR OTHER
15 HANDLING IS LESS THAN TWENTY WEEKS.]

16 C. A person who violates this section is guilty of a class 5
17 felony, EXCEPT THAT A PERSON WHO MUTILATES, DISFIGURES OR DISMEMBERS A
18 DEAD HUMAN BODY WITH THE INTENT TO CONCEAL A CRIME OR AVOID APPREHENSION

House Amendments to H.B. 2044

- 1 FOR A CRIME OR WHO CAUSES THE DEATH OF A PERSON BEFORE ABANDONING OR
- 2 CONCEALING THE DEAD HUMAN BODY OR PARTS IS GUILTY OF A CLASS 3 FELONY.

3 Enroll and engross to conform

4 Amend title to conform

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